

1.

CASE #	CASE NAME	HEARING NAME
CVRI2506635	BURDETT VS HOME DEPOT USA	MOTION FOR PREFERENTIAL TRIAL SETTING BY MARLYS BURDETT

Tentative Ruling:

Moving party: Plaintiff Marlys Burdett
Responding party: Defendant Home Depot U.S.A., Inc.

This premises liability action arises from injuries sustained by Plaintiff Marlys Burdett ("Plaintiff") at premises ("Premises") owned, operated, managed, or controlled by Defendant Home Depot U.S.A., Inc. ("Defendant").

In the Complaint, Plaintiff alleges that on September 24, 2025, she was walking through the aisles on the Premises when she was struck by Defendant's employee, Doe 1, who was pushing a large cart. Plaintiff alleges that she fractured her left hip and left leg as a result of the collision and fall.

On November 25, 2025, Plaintiff filed a Complaint against Defendant, alleging a cause of action for general negligence.

On March 17, 2026, Defendant filed its Answer to the Complaint.

Plaintiff now moves for preferential trial setting under C.C.P. § 36(a), contending that she is over 70 years of age, as she is currently 85 years old. Plaintiff asserts that as a result of the leg fracture she sustained in the incident, she developed a blood clot that traveled to her lung, which prompted further hospitalization. Plaintiff states that she is permanently disabled, remains in an inpatient rehabilitation facility, and will need treatment, care, and assisted living for the rest of her life. The motion is supported by a declaration from Plaintiff's counsel, which attaches copies of Plaintiff's medical records.

In opposition, Defendant argues that Plaintiff's chronic conditions are manageable and do not meet the requirements under C.C.P. § 36(a), which Defendant alleges requires a risk of death or incapacity. Defendant further contends that because Plaintiff asserts that she requires a future procedure as a result of her hip surgery, it makes more sense to allow Plaintiff to undergo any treatments and enter the medical billing information into evidence rather than rely on expert testimony to hypothesize future medical expenses.

In reply, Plaintiff argues that C.C.P. § 36(a) does not require a showing of risk of death or incapacity. Plaintiff further contends that she requires a walker for mobility and is scared to leave her house in fear of falling again.

Analysis

Plaintiff brings this motion pursuant to C.C.P. § 36(a), which provides that a party who is over 70 years of age may petition the court for preference, “which the court *shall* grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (C.C.P. § 36(a) [emphasis added].)

Where a party meets the requisite standard for calendar preference based on the party’s health and status as more than 70 years of age, preference must be granted; no weighing of interest is involved. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.) The legislative purpose of trial preference under C.C.P. § 36(a) is “to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress.” (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515.) Upon granting such a motion, the court shall set the matter for trial not more than 120 days from that date. (C.C.P. § 36(f).)

Here, there is no dispute that Plaintiff is 85 years old. (Gaines Decl., Exh. 1.) However, the Court must also find that Plaintiff has a substantial interest in the action and her health is such “that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (C.C.P. § 36(a)(1)-(2).) There is also no dispute that Plaintiff has a substantial interest in this action, as she is the sole plaintiff. The salient question is whether Plaintiff’s health makes preference “necessary to prevent prejudicing her interest in the litigation.” (*Id.*)

Here, Plaintiff’s medical records show that she has a medical history of hypertension, chronic kidney disease, Type 2 diabetes mellitus, and osteoporosis, and wears bilateral hearing aids. (Gaines Decl., Exh. 2.) On September 24, 2025, Plaintiff suffered a left intertrochanteric hip fracture after her fall, which required immediate surgical intervention. (Gaines Decl., Exhs. 1 and 2.) On October 5, 2025, Plaintiff was hospitalized for chest pain, SIRS [Systemic Inflammatory Response Syndrome] criteria, acute renal failure, and uremia. (Gaines Decl., Exh. 4.) On November 5, 2025, Plaintiff presented to the Emergency Department with abdominal pain, and a CT scan revealed a segmental pulmonary embolism in the right lower lobe of her lung. (Gaines Decl., Exh. 3.) Plaintiff’s counsel attests that Plaintiff has been living at an inpatient rehabilitation facility since her hip surgery, requires a walker for mobility, and is “scared to leave her house in fear of falling again.” (Gaines Decl., ¶ 5; Gaines Decl. II, ¶ 2.) Plaintiff’s counsel further argues that Plaintiff is permanently disabled and will need treatment, care, and assisted living for the rest of her life. Although Plaintiff’s counsel also argues that her “doctors are concerned that she may succumb to her injuries,” there is no evidentiary support for this contention in counsel’s declaration or Plaintiff’s medical records. (Motion, p. 3.)

Defendant argues that Plaintiff is required to show a risk of “death or incapacity” to obtain relief under C.C.P. § 36(a). However, the *Fox* court expressly rejected

Defendant's argument, explaining, "[s]ection 36, subdivision (a), says nothing about 'death or incapacity'...The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's '*health ... is such that a preference is necessary to prevent prejudicing [her] interest in the litigation.*' (Italics added.) [Defendant's] proposed reading of subdivision (a), requiring a showing of what amounts to likely unavailability for trial, sets the prejudice standard too high." (*Fox, supra*, 21 Cal.App.5th at 496-497 [original emphasis].)

Given the above, Plaintiff has sufficiently established that her health makes trial setting preference necessary to prevent prejudicing her interest in the litigation. (C.C.P. § 36(a)(2).) Thus, the Court **GRANTS** Plaintiff's motion for trial preference setting and orders trial to be set not more than 120 days from the date of the Court's order.

Summary:

Grant the motion for trial preference. Trial is set for **10/30/2026** at 8:30 a.m. in Dept. 6.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507137	MONROY VS FREDERICK EKO	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET ONE

Tentative Ruling:

Moving party: Plaintiff Myra Monroy
Responding party: Defendant Fredrick Eko, M.D.

This is a medical malpractice action. Plaintiff Myra Monroy ("Plaintiff"), acting in pro per, alleges that Defendant Fredrick Eko, M.D. ("Defendant") performed an unnecessary medical procedure on her on 6/27/22, without obtaining proper informed consent or maintaining complete medical records. The operative First Amended Complaint, filed 2/2/26, asserts: (1) medical negligence, (2) lack of informed consent, (3) negligence, and (4) negligent infliction of emotional distress.

Now, Plaintiff moves to compel further responses from Defendant to her Request for Production (RFP), set one. Her motion did not identify any specific discovery requests or responses, did not include a separate statement, and did not attach a meet-and-confer declaration. Plaintiff argues in general that Defendant's responses are evasive, contain boilerplate objections, and that Defendant withheld key documents. Specifically, Plaintiff alleges that Defendant's "Exhibit A" failed to produce internal communications, photographs, policies and protocols, and incident reports. Plaintiff